



January 14, 2026

HOUSE BILL No. 1249

DIGEST OF HB 1249 (Updated January 14, 2026 11:05 am - DI 140)

Citations Affected: IC 31-30.

Synopsis: Juvenile court jurisdiction. Adds the unlawful carrying of a handgun, if charged as a felony, to the list of offenses over which a juvenile court does not have jurisdiction.

Effective: July 1, 2026.

Zimmerman, Bascom

January 5, 2026, read first time and referred to Committee on Courts and Criminal Code.
January 14, 2026, reported — Do Pass.

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January 14, 2026

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1249

A BILL FOR AN ACT to amend the Indiana Code concerning family law and juvenile law.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 31-30-1-4, AS AMENDED BY P.L.218-2025,
2 SECTION 7, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]: Sec. 4. (a) The juvenile court does not have jurisdiction
4 over an individual for an alleged violation of:
5 (1) IC 35-41-5-1(a) (attempted murder);
6 (2) IC 35-42-1-1 (murder);
7 (3) IC 35-42-3-2 (kidnapping);
8 (4) IC 35-42-4-1 (rape);
9 (5) IC 35-42-4-2 (criminal deviate conduct) (before its repeal);
10 (6) IC 35-42-5-1 (robbery) if:
11 (A) the robbery was committed while armed with a deadly
12 weapon; or
13 (B) the robbery results in bodily injury or serious bodily
14 injury;
15 (7) IC 35-42-5-2 (carjacking) (before its repeal);
16 **(8) IC 35-47-2-1.5 (unlawful carrying of a handgun), if**
17 **charged as a felony;**

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1 ~~(8)~~ **(9)** IC 35-47-10 (children and firearms), if charged as a felony;
 2 or
 3 ~~(9)~~ **(10)** any offense that may be joined under IC 35-34-1-9(a)(2)
 4 with any crime listed in this subsection;
 5 if the individual was at least sixteen (16) years of age but less than
 6 eighteen (18) years of age at the time of the alleged violation.

7 (b) Once an individual described in subsection (a) has been charged
 8 with any offense listed in subsection (a), the court having adult
 9 criminal jurisdiction shall retain jurisdiction over the case if the
 10 individual pleads guilty to or is convicted of any offense listed in
 11 subsection (a)(1) through ~~(a)(8)~~; **(a)(9)**.

12 (c) If:

- 13 (1) an individual described in subsection (a) is charged with one
 14 (1) or more offenses listed in subsection (a);
 15 (2) all the charges under subsection (a)(1) through ~~(a)(8)~~ **(a)(9)**
 16 resulted in an acquittal or were dismissed; and
 17 (3) the individual pleads guilty to or is convicted of any offense
 18 other than an offense listed in subsection (a)(1) through ~~(a)(8)~~;
 19 **(a)(9)**;

20 the court having adult criminal jurisdiction may withhold judgment and
 21 transfer jurisdiction to the juvenile court for adjudication and
 22 disposition. In determining whether to transfer jurisdiction to the
 23 juvenile court for adjudication and disposition, the court having adult
 24 criminal jurisdiction shall consider whether there are appropriate
 25 services available in the juvenile justice system, whether the child is
 26 amenable to rehabilitation under the juvenile justice system, and
 27 whether it is in the best interests of the safety and welfare of the
 28 community that the child be transferred to juvenile court. All orders
 29 concerning release conditions remain in effect until a juvenile court
 30 detention hearing, which must be held not later than forty-eight (48)
 31 hours, excluding Saturdays, Sundays, and legal holidays, after the order
 32 of transfer of jurisdiction.

33 (d) A court having adult criminal jurisdiction, and not a juvenile
 34 court, has jurisdiction over a person who is at least twenty-one (21)
 35 years of age for an alleged offense:

- 36 (1) committed while the person was a child; and
 37 (2) that could have been waived under IC 31-30-3.

38 This subsection applies to a criminal proceeding for an alleged offense
 39 regardless of whether the offense was committed before, on, or after
 40 July 1, 2023, or the juvenile becomes twenty-one (21) years of age
 41 before, on, or after July 1, 2023.

42 SECTION 2. IC 31-30-3-5, AS AMENDED BY P.L.148-2024,



SECTION 16, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. Except for those cases in which the juvenile court has no jurisdiction in accordance with IC 31-30-1-4, the court shall, upon motion of the prosecuting attorney and after full investigation and hearing, waive jurisdiction if it finds that:

(1) the child is charged with an act that, if committed by an adult, would be:

(A) a Level 1 felony, Level 2 felony, Level 3 felony, or Level 4 felony, except a felony defined by IC 35-48-4;

(B) involuntary manslaughter as a Level 5 felony under IC 35-42-1-4; **or**

(C) reckless homicide as a Level 5 felony under IC 35-42-1-5; **or**

~~(D) unlawful carrying of a handgun as a felony under IC 35-47-2-1.5;~~

(2) there is probable cause to believe that the child has committed the act; and

(3) the child was at least sixteen (16) years of age when the act charged was allegedly committed;

unless it would be in the best interests of the child and of the safety and welfare of the community for the child to remain within the juvenile justice system.



COMMITTEE REPORT

Mr. Speaker: Your Committee on Courts and Criminal Code, to which was referred House Bill 1249, has had the same under consideration and begs leave to report the same back to the House with the recommendation that said bill do pass.

(Reference is to HB 1249 as introduced.)

MCNAMARA

Committee Vote: Yeas 9, Nays 4

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